

BEFORE THE COLORADO STATE BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. RG GB DLHLJ

STIPULATION AND ORDER

IN THE MATTER OF THE APPLICATION FOR A LICENSE
TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO
OF PATRICIA MIKKELSON, M.A.,
~~APPLICANT~~

Applicant

IT IS HEREBY STIPULATED and agreed by and between the Colo-
rado State Board of Licensed Professional Counselor Examiners
("Board") and Patricia Mikkelson, M.A. ("applicant" or
"Mikkelson") pursuant to §12-43-708, C.R.S. (1991), as fol-
lows:

1. The Board has jurisdiction over the person of applicant
and the subject matter set forth in this stipulation and order.

2. Ms. Mikkelson made application for a license to prac-
tice professional counseling in Colorado on March 3, 1992. Ap-
plicant completed the required examination with a passing score
on April 17, 1993.

3. The applicant desires to obtain a license to practice
professional counseling in the State of Colorado, but recognizes
and accepts the need for Board supervision and probation to en-
sure the applicant is able to practice professional counseling
with reasonable skill and safety to her clients and in accordance
with generally accepted professional standards of practice.

4. The Board has the statutory responsibility and obli-
gation to safeguard the public health, safety, and welfare of the
people of this state as set forth in §12-43-101, C.R.S.
(1991), and the Board determined that reasonable grounds existed
to impose the terms of probation set forth in this stipulation
and order on applicant's license to practice professional coun-
seling in the State of Colorado.

5. The Board has authorized its legal counsel, the Colorado Attorney General to prepare this stipulation and order with the intention that applicant be licensed to practice professional counseling in the State of Colorado under the terms of the probation set forth herein.

6. Applicant will be licensed to practice professional counseling in the State of Colorado pursuant to the terms of probation set forth herein. Said licensure shall occur on the date this stipulation and order becomes effective.

7. Applicant understands her right to consult with an attorney of her own choosing prior to entering into this stipulation and order and that she has a right to an administrative license denial hearing in the event she elects to seek a Professional Counselor's license without terms of probation attached thereto. By entering into this stipulation and order, applicant is waiving her right to a license denial hearing and is agreeing to comply with the terms of probation set forth below. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, she waives her right to appeal or otherwise contest the validity of the final Board order in this matter.

8. The Board, by this stipulation and order, hereby orders that applicant be granted a license to practice professional counseling in Colorado subject to probation for a period of three years commencing on the effective date of this order. During the probationary period applicant can practice professional counseling only if she complies with all conditions of the probation.

9. The conditions of applicant's probation are:

(a) Should applicant practice professional counseling and psychotherapy in a position where she is employed by and directly supervised by a hospital, mental health agency, other health care provider, or other employer, her employer shall provide the following minimal supervision:

(i) The supervision must involve direct, regular contact between applicant and her supervisor that occurs at such frequency and for such length of time as the supervisor deems necessary. Applicant and her supervisor must review and discuss each of applicant's active cases on a regular basis to allow the supervisor to determine whether applicant is practicing professional counseling and psychotherapy in accordance with generally accepted professional standards of practice and with reasonable skill and safety to her clients.

(ii) The supervisor shall observe applicant in her work with clients to the extent the supervisor deems appropriate and necessary to determine whether applicant is practicing professional counseling and psychotherapy in accordance with generally accepted professional standards of practice and with reasonable skill and safety to her clients.

(iii) The supervisor shall review applicant's case load to assure that applicant is only treating clients that she is capable of treating in accordance with her level of training, experience and competence.

(iv) The supervisor shall maintain such personnel records as are deemed appropriate by the supervisor or kept in the normal course of employee evaluation. Such personnel records shall be sufficient to reflect applicant's practice of professional counseling and psychotherapy and allow the supervisor to report to the Board whether applicant is appropriately treating clients in accordance with her training and experience, according to generally accepted standards of practice, and with reasonable skill and safety to her clients. The supervisor shall report to the Board, in writing, whether applicant is practicing professional counseling and psychotherapy in accordance with generally accepted professional standards of practice and with reasonable skill and safety to her clients. The first such report shall be provided on the fifth day of the month following the first full month of applicant's employment. The supervisor shall submit subsequent reports on the fifth day of each month thereafter (i.e. on a monthly basis) for the first twelve months of employment. At the conclusion of the first twelve months of employment, unless otherwise directed by the Board, the supervisor shall submit her/his reports on the fifth day of every third month (i.e. on a quarterly basis).

(v) If the supervisor is of the opinion that the applicant is not practicing professional counseling and psychotherapy in accordance with generally accepted professional standards of practice or with reasonable skill and safety to her clients, s/he shall take appropriate employment action and shall report the opinion and basis or bases for that opinion as well as any action affecting applicant's employment to the Board. Any such report shall be made in writing within 48 hours of the supervisor forming her/his opinion. The supervisor shall send a copy of the report to the applicant and the therapist (if applicable) when s/he sends the report to the Board. Should the board receive such a report, applicant agrees to discontinue the practice of professional counseling and psychotherapy until the Board reviews the report and the basis for the opinion to determine if

applicant can practice professional counseling and psychotherapy in accordance with generally accepted professional standards of practice and with reasonable skill and safety to her clients.

(b) Should applicant engage in the independent practice of professional counseling and psychotherapy, her practice of professional counseling and psychotherapy must be supervised by a Board-approved monitor ("practice monitor"), who supervises applicant and reports in writing to the Board in accordance with this Order.

(i) Applicant shall have a practice monitor who supervises all of her independent practice cases. The practice monitoring shall consist of individual face-to-face contact between applicant and her practice monitor that occurs at least once for every 20 hours of client contact with independent practice clients, or at least once every three weeks. The practice monitoring sessions shall be for one hour or such longer time as the practice monitor deems necessary. During supervision, applicant and her practice monitor must review and discuss each of applicant's active cases at least once every four hours of practice monitoring or at least once a month, to allow the practice monitor to determine whether applicant is practicing psychotherapy in accordance with generally accepted professional standards of practice and with reasonable skill and safety to her clients.

(ii) The practice monitor is authorized to examine and shall examine such client records and case files maintained by applicant as the practice monitor deems appropriate and necessary to determine whether or not applicant is practicing psychotherapy in accordance with generally accepted professional standards of practice and with reasonable skill and safety to her clients.

(iii) The practice monitor must report the results of supervision to the Board in writing and send a copy of each report to the applicant. The practice monitor must submit her/his first report on the fifth day of the month following the first full month of practice monitoring. The practice monitor shall submit subsequent reports on the fifth day of each month thereafter (i.e. on a monthly basis) for the first 12 months of practice monitoring. At the conclusion of the first 12 months of practice monitoring, unless otherwise directed by the Board, the practice monitor shall submit her/his reports on the fifth day of every third month (i.e. on a quarterly basis).

(iv) After the Board's written approval of the practice monitor, applicant and her practice monitor shall enter

into a written contract for supervision. The practice monitor shall provide a copy of that written contract to the Board as part of her/his first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this Order and of the Board's file; has read these documents; and understands the duties and responsibilities s/he is undertaking as applicant's practice monitor. The practice monitor shall assure that a letter or disclosure statement informing each professional counseling and psychotherapy client that applicant's practice is supervised and giving the name address and telephone number of the practice monitor is provided to each client. The first practice monitor report shall acknowledge that such letters or disclosure statements have been provided to each professional counseling and psychotherapy client.

(v) If the practice monitor is of the opinion that applicant is not practicing professional counseling and psychotherapy in accordance with generally accepted professional standards of practice or with reasonable skill and safety to her clients, the practice monitor shall report her/his opinion and the basis or bases for that opinion to the Board. The practice monitor shall make that report in writing and within 48 hours of forming her/his opinion. The practice monitor shall send a copy of that report to the applicant when s/he sends the report to the Board. Should the Board receive such a report, applicant agrees to discontinue the practice of professional counseling and psychotherapy until the Board reviews the report and the basis for the opinion to determine if applicant can practice professional counseling and psychotherapy in accordance with generally accepted professional standards of practice and with reasonable skill and safety to her clients.

(vi) Either applicant or her practice monitor may terminate the supervisory relationship on written notice to the other and to the Board not less than 30 days before the date of termination. The notice shall state the reason for the termination. In the event of termination, applicant shall be allowed a reasonable period of time, acceptable to the Board, during which she will be allowed to practice while she actively seeks another Board-approved practice monitor. If applicant does not obtain another Board-approved practice monitor within the reasonable period of time allowed, she may not practice professional counseling and psychotherapy until she obtains another Board-approved practice monitor. The practice monitor responsibilities shall be in accordance with the provisions of this Order.

(c) Applicant can not supervise any person(s) who is providing psychotherapy to clients unless such supervision is

monitored by applicant's practice monitor in accordance with the provisions of this paragraph 9.

(d) Applicant shall be examined by an individual approved by the Board ("evaluator") who shall evaluate applicant to determine her mental status and whether she should undergo therapy. As part of the evaluation the evaluator shall be provided the Board's file and pertinent information on this case. Applicant agrees to provide the evaluator with any medical or psychological information requested by the evaluator as part of the evaluation. The evaluator shall provide a written report to the Board setting forth the nature of the evaluation conducted with findings, recommendations and an opinion on whether applicant shall undergo therapy and whether she can practice professional counseling and psychotherapy with skill and safety to her clients and in accordance with generally accepted professional standards of practice. Should the evaluator recommend that applicant does not need to undergo therapy, and the Board agrees with this recommendation, all other requirements of this paragraph 8(d) shall not apply to applicant. Should the evaluator recommend that applicant undergo therapy and the Board agrees with this recommendation, applicant shall undergo therapy with an individual approved by the Board ("therapist"), who both conducts therapy and reports in writing to the Board in accordance with this stipulation and order.

(i) The psychotherapy must consist of individual or group therapy sessions, or both, that occur in a frequency to be determined by the therapist, but in no event less frequently than once every week, unless otherwise approved by the Board based on the recommendations of the therapist.

(ii) The therapist shall report to the Board in writing both the progress of the therapy and whether or not applicant is able to practice professional counseling and psychotherapy with reasonable skill and safety to her clients, and must send a copy of each report to the practice monitor and applicant. The therapist must submit her/his first report by the fifth day of the month following the first full month of the therapy after this order takes effect. The therapist shall submit subsequent reports by the fifth day of every month thereafter (i.e., on a monthly basis) for the first 12 months. At the conclusion of the first 12 months, unless otherwise ordered by the Board, the therapist shall submit reports by the fifth day of every third month thereafter (i.e., on a quarterly basis).

(iii) In the first report, the therapist shall state that s/he has received and read a copy of this stipulation

and order, and the Board's file and must state that s/he understands the duties and responsibilities s/he is undertaking as applicant's therapist.

(iv) If, at any time, the evaluator or the therapist is of the opinion that applicant is practicing professional counseling or psychotherapy in a manner which does not meet the generally accepted standards of professional practice or has a physical or mental disability which renders her unable to treat her clients with reasonable skill and safety or which may endanger the health or safety of persons under her care, the therapist or evaluator shall report such opinion and the reasons for that opinion to the Board. The therapist or evaluator shall make that report, in writing, within 48 hours of forming her/his opinion. The therapist or evaluator shall send a copy of such report to the practice monitor and applicant when s/he sends the report to the Board.

(v) Either applicant or her therapist may terminate the therapeutic relationship on written notice to the other and the Board no less than 30 days before the date of termination. The notice shall state the reason for the termination. In the event of termination, applicant shall be allowed a reasonable period of time, acceptable to the Board, during which she will be allowed to practice while she actively seeks another Board-approved therapist. If applicant does not obtain another Board-approved therapist within the reasonable period of time allowed, she may not practice professional counseling and psychotherapy until she obtains another Board-approved therapist, who shall conduct therapy with applicant and report to the Board in accordance with the provisions of this order.

(e) Applicant will not treat any client(s) that is diagnosed with or displays symptoms that lead the applicant or her practice monitor to determine that the client's problems include issues that are beyond applicant's training, experience or competence. Should a new client seek professional counseling and psychotherapy services from applicant and she or her practice monitor determines (when the client initially seeks treatment or at any time after treatment is commenced) that the client has problems, as part of her/his treatment concerns, that are beyond applicant's training, experience or competence, applicant will refer that client to another practitioner for professional counseling and psychotherapy treatment and terminate any therapeutic relationship.

(f) Applicant shall complete a minimum of twenty contact hours (twenty actual hours of class attendance) of gradu-

ate level education in appropriate ethical standards during the eighteen months following entry of this order. Upon completion of the required education defendant shall certify to the Board her completion of the course work and details regarding the education. This education may be twenty hours of continuing education or twenty classroom hours of graduate level education from an educational institution.

(g) Applicant is responsible for the reports due under this Order and must take reasonable steps to assure that her practice monitor and therapist (if required) report to the Board in accordance with this Order. The failure of the practice monitor or therapist (if required) to submit reports to the Board on a timely and regular basis in accordance with the terms of this Order may be construed as a violation of this Order.

(h) Applicant must pay all costs and/or expenses incurred for practice monitoring, evaluation, therapy, education, or any other action necessary to fulfill the requirements of this Order.

(i) If applicant is not providing professional counseling or psychotherapeutic services to clients as of the date of this Order, she must file with the Board a written statement that she has no professional counseling and psychotherapy clients, within thirty (30) days of the date of this Order.

(j) Applicant must provide written notification to every professional counseling and psychotherapy client who she provides any professional counseling and psychotherapy services to while this Order is in effect, stating that her practice of professional counseling and psychotherapy is being supervised. The written notice shall include the name, address, and telephone number of her practice monitor. Such notice may be provided in a mandatory disclosure form. Applicant's failure to provide this written notice to each such professional counseling and psychotherapy client may be construed as a violation of this Order.

(k) Applicant agrees that she will provide or allow her practice monitor, evaluator or therapist to provide medical or psychological information to the Board in the event the practice monitor, evaluator or therapist determines that she is not practicing professional counseling and psychotherapy in accordance with generally accepted professional standards of practice or with reasonable skill and safety to her clients. As part of this stipulation and order applicant explicitly waives her right to maintain confidentiality of medical and psychological records and information provided to her practice monitor, evaluator or

therapist if the practice monitor, evaluator or therapist determines that she is not practicing professional counseling and psychotherapy in accordance with generally accepted standards of professional practice or with reasonable skill and safety to her clients.

10. All time periods and obligations stated in this Order run only while applicant is engaged in the practice of professional counseling and psychotherapy in Colorado under the monitoring of a Board approved practice monitor and treatment of a Board approved therapist (if applicable). They are tolled and suspended at all other times.

11. In the event applicant moves to another jurisdiction, applicant shall notify the Board, in writing, within thirty (30) days of her move, and provide her new address and of the date on which she relocated.

12. In the event applicant remains in Colorado but is not engaged in the practice of professional counseling and psychotherapy she shall notify the Board, in writing, within thirty (30) days of her leaving the practice of professional counseling and psychotherapy, that she has left the practice of professional counseling and psychotherapy and of the date on which she left the practice of professional counseling and psychotherapy.

13. In the event applicant initiates or resumes the practice of professional counseling and psychotherapy in Colorado she shall notify the Board, in writing, within thirty (30) days that she is presently practicing professional counseling and psychotherapy in Colorado. Such communication shall include her address and the date on which she initiated or resumed the practice of professional counseling and psychotherapy in Colorado.

14. Any violation of this stipulation and order or any report from the practice monitor or the therapist that the Board deems to be unfavorable to applicant shall, in the discretion of the Board, constitute grounds for disciplinary action or other legal action pursuant to §§ 12-43-701 to 12-43-711, C.R.S. (1991). This stipulation and order shall be admissible as evidence in any proceeding or hearing held to determine whether or not applicant complied with this stipulation and order and/or §§12-43-701 to 12-43-711 (1991), and at any subsequent inquiry related to licensure of applicant.

15. If a violation of this stipulation and order is proven after hearing, the Board or a court may take into consideration all provisions, terms, and conditions of this stipulation and

order prior to taking any action pursuant to and authorized by §§ 12-43-701 to 12-43-711, C.R.S. (1991). The requirements of this stipulation and order shall continue in effect throughout any disciplinary or judicial proceeding.

16. Applicant agrees that if, after the effective date of this order and during her probationary period the Board has reasonable grounds to believe that applicant is in violation of this stipulation and order, the Colorado Mental Health Statute, or both, the Board may summarily suspend applicant's license to practice professional counseling in Colorado pending a formal disciplinary hearing.

17. The Board will review the status of applicant prior to the expiration of the probationary period. Applicant's probationary period is subject to continuation, amendment, or revision if the Board, in the reasonable exercise of its discretion, determines that such action is necessary to protect the public health, safety, or welfare.

18. As used in this stipulation and order, "engaged in the practice of professional counseling," "practice of professional counseling," "professional counseling treatment," and "professional counseling services," have the same meaning as "professional counseling," as defined in §12-43-601(4), C.R.S. (1991)

19. Applicant enters into this stipulation and order voluntarily, and after being fully advised both as to her right to a hearing and as to the consequences of this stipulation and order.

20. The Board order resulting from this stipulation and order possesses the same force and effect as an order entered as a result of a formal disciplinary proceeding held pursuant to § 12-43-705, C.R.S. (1991); §24-4-105, C.R.S. (1988); and the Board's rules.

21. No agreement, understanding, representation, or interpretation not contained in this stipulation and order may be used to vary or to contradict its terms.

22. Each provision of this stipulation and order is separate. In the event of litigation involving compliance with the terms of this stipulation and order, the issues will be restricted to those raised by the interested parties; the resolution of those issues will affect only the pertinent parts of the stipulation and order; and the parties will be obligated by the

Board-construed or judicially-construed parts of the stipulation and order as if they were part of the original stipulation and order.

23. This stipulation and order shall take effect on acceptance and signature by the Board ("effective date of the order").

24. This stipulation and order is a public record.

Patricia Mikkelsen

PATRICIA MIKKELSON, M.A.
Applicant

Dated:

9/28/94

COLORADO STATE BOARD
OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS

By:

Rex D. Filer

Rex D. Filer,
Board Chair

Dated:

10-14-94

APPROVED AS TO FORM

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